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The Honorable Marsha Blackburn
United States Senate
Washington, DC 20510

Re: 7-hydroxymitragynine, the March 18 letter to Commissioner Makary, and a gap in the scheduling action that nobody has raised

Senator Blackburn,

I am a constituent in Columbia. I run a small independent investigative group. We have spent the last month on the federal 7-OH scheduling action, and I am writing for two reasons. One is something we found that is in your favor and that you did not ask us to look for. The other is a question I would like you to ask.

FIRST, THE PART THAT HELPS YOU

You signed the letter of 18 March 2026 to Commissioner Makary urging action on 7-OH. Ten of your colleagues signed with you.

When we started, our working theory was that the 7-OH action existed to protect the market position of leaf-kratom companies that officials had money in. That is a serious thing to suspect, so we tested it against primary records rather than assuming it.

On the eleven of you, the theory failed. We queried Federal Election Commission records by contributor employer for every kratom company and trade association we could identify. Not one of the eleven signatories appears as a recipient of any of it. Not you, not Chairman Crapo, not one. We have published that finding as plainly as we published everything else, because a clean result is worth as much as a dirty one and people are entitled to both.

I want to be accurate rather than flattering: an absence of contribution records is not a certificate of anything, employer fields are self-reported, and we said so in the finding. But we looked hard and we found nothing, and I would rather you hear that from us than never hear it at all.

SECOND, THE PART WHERE I NEED YOU

Every substance the government has moved against sits on one chemical scaffold. 7-OH itself, mitragynine pseudoindoxyl, MGM-15 and MGM-16 are all structural relatives of mitragynine.

The same plant contains a second scaffold. A compound called 9-hydroxycorynantheidine stands to corynantheidine roughly as 7-OH stands to mitragynine, and it is covered by nothing. It appears in no federal docket document, no lobbying disclosure and no FDA adverse event report. We ran controls on every one of those searches.

Florida already caught it. Its emergency rule of June 2026 names the compound. The federal instruments issued weeks later do not.

The reason this is urgent rather than academic is what we found last week. Two companies have filed patent applications claiming how to manufacture this compound industrially, one by cell-free enzymes and one by fermentation, both with priority dates in late 2023. Their own filings show the compound is an intermediate on the biosynthetic route to mitragynine, which means any facility making mitragynine that way passes straight through it and can stop there and isolate it.

Everyone has assumed the constraint on this compound is that there is too little of it in the leaf to matter. That assumption is already obsolete.

WHAT I AM ASKING

Not for money, not for an endorsement, and not for anything that costs your office political capital with a colleague.

1. Ask the Department, on the record, whether its scientific and medical evaluation considered mu-opioid-active alkaloids of *Mitragyna speciosa* outside the mitragynine scaffold, and if it did, on what basis they were excluded.
1. Ask whether the scope of the action was set on how abundant a compound is in the plant, or on whether it can be manufactured. Those are different questions and only one of them still makes sense.
1. Ask that any subsequent notice publish the full list of alkaloids considered and the disposition of each, so the public can evaluate the scope rather than infer it.

Those three questions are already before the Department. We filed them on docket HHS-OASH-2026-0232 as comment mtc-q9zv-dase on 28 August, alongside two earlier comments. A comment from a private citizen can be acknowledged and shelved. The same question from a sitting senator who already signed the March

letter is harder to shelve, and it is consistent with the position you have already taken.

WHAT I AM OFFERING

Everything we have, at no cost and with no conditions.

Twenty-five documented findings, every exhibit hashed and dated, the patent analysis, the lobbying and contribution records, and the three federal comments. It is public at github.com/jpuckett11/ObsidianGroup_CaseSevenfold and your staff can take any of it without crediting us. If it is more useful as a briefing, I will sit down with whoever you send and walk them through the primary documents.

I will also tell your staff which parts of our own work cut against our theory, because there are several, and they should know before they rely on any of it.

There is one more finding I will mention and then leave alone. A sitting official holds between \$500,001 and \$1,000,000 in a leaf-kratom manufacturer, disclosed on a nominee financial disclosure and left off an ethics divestiture agreement that captured sixty-three other equities. That is a matter of public record. I am not asking you to characterize it, take a position on it, or say anything about a colleague. I am telling you it exists because you signed a letter on this subject and you should not learn about it from somebody else.

I got into this because people I know were hurt by these products, and because the buyer is told it is a botanical while the seller's own website admits it is habit-forming on a page the buyer never reaches. Whatever else is true about the money, that part is just a lie told to people who trusted a label.

Thank you for your time, and for signing the March letter before any of this was in the news.

Respectfully,

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